

THE STATE OF NEW HAMPSHIRE
JUDICIAL BRANCH
<http://www.courts.state.nh.us>

Court Name: _____
Case Name: _____
Case Number: _____ Charge ID: _____
(if known)

**PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR
CONVICTION FOR PERSONAL POSSESSION OF MARIJUANA (3/4 oz. or less)
OFFENSE OCCURRING PRIOR TO SEPTEMBER 16, 2017**

PLEASE COMPLETE A SEPARATE FORM FOR EACH OFFENSE

APPLICANT'S INFORMATION			
Full Name: Maria-Alejandra O'Shaughnessy-Whitfield		Date of Birth: 1968-12-31	
Address: 1188 Upper Notch Crossing Road, Apartment 14B			
City/Town Portsmouth	State NH	Zip Code 03801-2214	Telephone Number:
E-mail Address: (optional) maria.alejandra.oshaughnessy.whitfield@longmailexample.org			

CHARGE INFORMATION		
RSA/Statute:	Charge: Possession of $\frac{3}{4}$ ounce or less of marijuana	
☐ Arrest no conviction		
Offense Date:	Date of Conviction:	Charge Degree at Conviction:
Description of Sentence and Date Sentence Completed: _____ _____ _____ _____		

Case Name: _____

Case Number: _____

PETITION OF ELIGIBILITY FOR ANNULMENT OF RECORD OF ARREST OR CONVICTION

I swear or affirm, under penalties of law, that the above facts are true and correct to the best of my knowledge and the amount of marijuana alleged to be or in my possession at the time of this charge was $\frac{3}{4}$ ounce or less.

Date

Applicant's Signature

Name of Counsel

Counsel's Signature

Address

Address

COURT COMPLETES:

Date sent to Prosecutor: _____ Sent by (initials): _____

Name of Prosecutor: _____

NOTICE TO PETITIONER

The Prosecutor may object to this petition within 10 days of receiving a copy and may request a hearing. If an objection is received from the prosecutor within 10 days the court will schedule a hearing. At the hearing the prosecutor will be required to establish beyond a reasonable doubt that the petitioner knowingly or purposely obtained, purchased, transported, or possessed, actually or constructively, or had under his or her control, marijuana in an amount exceeding $\frac{3}{4}$ of an ounce.

IT IS ORDERED AND CERTIFIED:

CERTIFICATE OF ANNULMENT

☐ That the of arrest and or the record of conviction and sentence in the above entitled case, together with any record of arrest or charge therein, is hereby annulled. The applicant has shown that issuance of this order is warranted under the statute.

☐ The Court DENIES the applicant's petition for the following reason(s):

Date

Signature of Judge

Printed Name of Judge

CC: ☐ Prosecutor

☐ Defense Attorney

☐ DMV

☐ _____ Police Department

☐ Attorney General

☐ Sentence Review

☐ Defendant

☐ Dept. of Safety – Criminal Records

☐ Dept. of Corrections

☐ Other _____

☐ _____ District Division #

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(if known)

MOTION FOR WAIVER OF FILING FEE

I, Maria-Alejandra O'Shaughnessy-Whitfield, hereby request that the Court waive the filing fee in this case as I do not have the financial ability to pay these fees at this time.

I have completed a Statement of Assets and Liabilities which is being filed with this motion.

In support of this motion, it is stated as follows:

Wherefore, it is respectfully requested that this Court waive the filing fee in this case.

Name of Filer

Signature of Filer

Date

Law Firm, if applicable

Bar ID # of attorney

Telephone

Address

E-mail

City

State

Zip code

Case Name: _____

Case Number: 218-2018-CR-00119821-SUPPLEMENTAL

MOTION FOR WAIVER OF FILING FEES

FOR COURT USE ONLY

☐ Motion Granted.

☐ Motion Denied

☐ Motion granted, in part. Filing fee reduced, party to pay \$ _____

Date

THE STATE OF NEW HAMPSHIRE

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Court Name: _____

Case Name: _____

Case Number: _____
(if known)**STATEMENT OF ASSETS AND LIABILITIES
FOR INDIVIDUALS AND SOLE PROPRIETORS**1. Name: Maria-Alejandra O'Shaughnessy-Whitfield DOB: 1968-12-312. Residence Address: 1188 Upper Notch Crossing Road, Apartment 14B, Portsmouth, NH 03801-2214

3. Mailing Address (if different): _____

4. Marital Status: ☐ Single ☐ Married ☐ Separated ☐ Widowed5. List the names, ages, relationships of dependents you support: _____

_____6. If you are presently employed, state where and for how long: _____ ☐ Full-Time ☐ Part-Time

7. If unemployed, state last date of employment: _____

8. When do you anticipate new employment? _____

9. If your spouse is presently employed, state where and for how long? _____ ☐ Full-Time ☐ Part-Time

10. If spouse unemployed, state last date of employment: _____

11. List other employed household members and their weekly income: _____

12. Please state weekly take-home amount	Yours	Spouse's
Salary/Wages	\$ _____	\$ _____
Child Support	\$ _____	\$ _____
Alimony	\$ _____	\$ _____
Trust Benefits	\$ _____	\$ _____
Investment Income	\$ _____	\$ _____
Other	\$ _____	\$ _____
*Social Security	\$ _____	\$ _____
*Welfare Benefits	\$ _____	\$ _____
*Veteran's Benefits	\$ _____	\$ _____
*Pension	\$ _____	\$ _____
**Unemployment Compensation	\$ _____	\$ _____
**Worker's Compensation	\$ _____	\$ _____
Total	\$ _____	\$ _____

13. What money is presently available to you?

Cash on hand	\$ _____
Checking account	\$ _____
Savings account	\$ _____
Stocks/Bonds/IRA/Pension	\$ _____
Total	\$ _____

Case Name: _____

Case Number: _____

STATEMENT OF ASSETS AND LIABILITIES FOR INDIVIDUALS AND SOLE PROPRIETORS

14. Please state your **monthly** household expenses:

Rent/Mortgage \$ _____

Property Taxes \$ _____

Heat \$ _____

Food \$ _____

Utilities \$ _____

Medical/Dental \$ _____

Insurance \$ _____

Total \$ _____

Cell Phone \$ _____

Clothing \$ _____

Transportation \$ _____

(including gas, maintenance, insurance, repairs)

Other (specify) _____

_____ \$ _____

_____ \$ _____

15. List any real estate you own, its market value and the amount you owe:

16. List any vehicles you own (car, truck, boat, motorcycle, snowmobile, RV), their market value and the amount you owe:

17. List income tax paid last year: \$ _____

18. List income tax refund received last year: \$ _____

19. Other than monthly household expenses, list any bills you owe, amount owed, to whom, and monthly payment:

20. List which of your bills are court-ordered payments (i.e. alimony, judgment in a law suit, etc.):

21. Other than those previously mentioned, list anyone to whom you owe money, amount and when it is due:

22. If anyone owes you money, state name, address, amount due, and when due:

23. List any property you have transferred within the last three years, to whom and for what price:

24. List any other assets or expenses not previously mentioned:

* Exempt income – The Court may not consider this income. If this represents the sole source of income, the court may not issue a payment order.

** Potentially/partially exempt income – The Court may be unable to consider this income. Based upon the facts of the case, the Court may or may not issue a payment order.

Case Number: _____

☐ I state that on this date I am sending a copy of this document as required by the rules of the Circuit Court. I am electronically sending this document through the court's electronic filing system to all attorneys and to all other parties who have entered electronic service contacts (email addresses) in this case. I am mailing or hand-delivering copies to all other interested parties.

Address _____ E-mail _____

City	State	Zip code
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- Social Security Old-Age, Survivors & Disability Insurance Benefits (42, U.S.C. § 407)
- Supplementary Security Income (SSI) for the Aged, Blind and Disabled (42 U.S.C. §407 and §1383(d)(1))
- Unemployment Compensation Benefits (RSA 282-A:159) (Exemption from payment orders except debts incurred for basic needs expenses for you or your family during the period of unemployment.
- Public Assistance Payments to the Blind, Aged or Disabled Persons and Dependent Children (ANB, OAA, APTD and TANF/FANF) (RSA 167:25)
- Veterans Benefits including: Retirement Benefits (10 U.S.C. §1440), Survivors' Benefits (10 U.S.C. §1450), Other Veterans Benefits (38 U.S.C. § 5301(a)), Medal of Honor Veterans Benefits (38 U.S.C. § 1562)
- Workers Compensation Benefits (RSA 281-A:52) (Exemption from payment orders except debts for medical and related care for the compensated injury and claims for legal fees approved by the Superior Court for prosecuting the workers compensation claim.
- Retirement funds including Individual Retirement Accounts, Stock Bonus, Pension, Profit-Sharing, Annuity or Similar Qualified Plan (RSA 511:2(XIX)). Exempt from periodic payments up to \$362.50 per week. If income and expenses are shared with another person with whom you live and the other person also receives income from such a retirement plan or arrangement, the exemption is up to \$725.00 per week.
- Civil Service Retirement Benefits (5 U.S.C. § 83466(a))
- Armed Forces Retirement Pay (10 U.S.C. § 1440)
- Railroad Retirement Act Annuities and Pensions (45 U.S.C. § 231m)
- Fireman's Retirement Pay (RSA 102:23)
- Fireman's Relief Payments (RSA 402:69)
- Foreign Services Retirement and Disability Payments (22 U.S.C. § 4060(c))
- Injury or Death Compensation Payments from War Risk Hazards (42 U.S.C. § 1717) (With exception of monies paid as reimbursement for funeral expenses or as reimbursement with respect to payments of worker's compensation or in the nature of worker's compensation benefits.)
- Lighthouse Keepers Widow's Benefits (33 U.S.C. §775)
- Wages of Fisherman, Seaman and Apprentices (46 U.S.C. § 11109) (With exception for an order of a court about the payment by a master or seaman of any part of the master's or seaman's wages for the support and maintenance of the spouse or minor children of the master or seaman, or both).
- Longshoremen's and Harbor Worker's Compensation Act Death and Disability Payments (33 U.S.C. § 916)

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